

26PSCV00045 26PSCV00045

County: los-angeles

Division: Civil Law and Motion

Department: G

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Case Number: 26PSCV00045 Hearing Date: September 2, 2026 Dept: G

Plaintiff

David Stanyo's Motion to Enforce Access to Medical Records from Nonparty Tibor
Rubin VA Medical Center

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Plaintiff

David Stanyo's Motion to Enforce Access to Medical Records from Nonparty Tibor
Rubin VA Medical Center is DENIED.

BACKGROUND

This

is an elder abuse action. In August 2024, defendant MJB Partners, LLC (MJB), a 14-hour skilled nursing facility allegedly owned and operated by defendant Sun Mar Management Services (Sun Mar), allegedly admitted plaintiff David Stanyo (Stanyo), an elder, as a resident. During his residency at MJB, Stanyo allegedly suffered falls, broke his ankle, developed a pressure sore, and experienced extreme and conscious pain and suffering.

On

January 7, 2026, Stanyo filed the Complaint, alleging causes of action for (1) elder abuse and (2) negligence.

On

July 20, 2026, Stanyo filed this motion to enforce access to medical records, which is unopposed. On July 22, 2026, the court conducted an informal discovery conference regarding unrelated discovery issues and continued the hearing on the motion to enforce access to medical records.

This

case is set for a case management conference, an informal discovery conference, a continued hearing on motions to compel further responses, and a continued hearing on the motion to enforce access to medical records on September 2, 2026.

ANALYSIS

Stanyo

moves to compel nonparty Tibor Rubin VA Medical Center (the VA) to make his medical records available for inspection and copying, or alternatively, requiring the VA to appear in court and explain why the records should not be produced. For the following reasons, the motion is DENIED.

Legal

Standard

“[I]f

an attorney . . . presents a written authorization . . . to a medical provider, the medical provider shall promptly make all of the patient's records under the medical provider's custody or control available for inspection and copying by the attorney at law or his or her representative.” (Evid. Code, § 1158, subd. (b).) “When a medical provider fails to comply with

[Evidence Code section 1158], in addition to any other available remedy, the demanding party may apply to the court for an order to show cause why the records should not be produced.” (Code

Civ. Proc., § 1985.7.) Additionally, if

a medical provider fails to comply with Evidence Code section 1158, then “[t]he court shall impose monetary sanctions pursuant [to Evidence Code section 1158, subdivision (d),] unless it finds that the person subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ.

Proc., § 1985.7; see also Evid. Code, § 1158, subd. (d), subjecting a

medical provider to liability for the requesting party's "reasonable expenses, including attorney's fees," incurred in obtaining the medical records for inspection and copying.)

Discussion

As

a preliminary matter, the courts notes that the VA is a federal agency. As such, this court lacks authority to compel a federal agency or an agent of the federal government to act, testify, or produce documents. (See *Civiletti v. Mun.*

Ct. (1981) 116 Cal.App.3d 105, 110, holding that "regarding the power to issue subpoenas to compel the attendance of witnesses and the production of documents, . . . when this power is asserted by a state sovereignty over the federal sovereignty, it is in contravention of our dual form of government and in derogation of the powers of the federal sovereignty," cleaned up; see also *Elko County Grand Jury v. Siminoe* (9th Cir. 1997) 109 F.3d 554, 556, finding that "the state court lacked jurisdiction to subpoena [the federal official].")

Therefore,

the motion to enforce access to medical records is DENIED.

CONCLUSION

For

these reasons, the motion to enforce access to medical records is DENIED.